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POLS 309: Race, Culture and Public Policy

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Examining Family Separation Immigration Policies

For families seeking asylum at the southern border of the United States, it is hard to predict exactly what they will face on the other side. While they are typically trying to escape threats to their lives or livelihoods, under both Democrat and Republican administrations they have faced more challenges after seeking asylum, the foremost of which is family separation policies. The Frontline documentary episode *Separated: Children at the Border*, follows the impacts of U.S. immigration policies on families seeking asylum in the United States under the second Obama administration and the first Trump administration. The episode was produced by Marcela Gaviria and featured correspondent Martin Smith as Smith visited different families seeking asylum in the United States, interviewing them on the perceived dangers of entering the U.S. and on the impacts of family separation policies on their children. *Separated: Children at the Border* traces the recent history of family separation policies at the U.S. - Mexico border, focusing on the legislative and public pushback of those policies. Although both administrations emphasized policies designed to discourage illegal immigration, the first Trump administration was marked by policies that separated families and violated due process protections afforded to immigrants. These policies also contributed to the characterization of Latinos in the United States as criminals and illegal immigrants, irrespective of their actual legal status in the country.

While an official family separation policy did not begin until President Trump's first administration, during former President Obama's second administration the zero tolerance policies in effect requiring adults face criminal charges for illegally crossing

the border meant that their children were put into the care of the Health and Human Services Department if the charges took longer than three days to process (Woodward, 2018). The 1997 *Flores* Settlement Agreement set the standard for how children must be treated while in federal immigration custody, limiting when and how children can be held in detention, but it was unclear whether the settlement also applied to children who were being held with their parents (*Enforce the Flores Settlement Agreement*, n.d.). In 2015, the Obama administration was sued by immigration advocates, who argued "that Flores should apply to any and all children held in detention, with or without their families," which the Ninth Circuit Court of Appeals ruled in favor of the advocates in *Flores v. Lynch* (2016), stating children may only be held in detention for twenty days ("Separated: Children at the Border," 2018, 26:38). Following the court's ruling, the Obama administration ceased separating families pending the processing of federal charges, instead releasing them pending court hearings. This does not, however, mean that the administration took a softer stance on immigration at the southern border. The South Texas Family Residential Center in Dilley, Texas, which opened a few months prior to the *Flores* ruling, was built for an expanded use of family detention while not separating children from their parents. This center was constructed in a remote area of Texas, designed to not be visible from afar, and is far from legal resources, greatly impacting families' chances of adequate legal representation at their court date ("Separated: Children at the Border," 2018). Under President Obama, deportations of unaccompanied minors reached an all-time high, which resulted in Latino activists and interest groups frequently referring to him as the "Deporter in Chief" (García & Sanchez, 2021, 202). While the Obama administration enforced a zero-tolerance policy towards

illegal immigration, they operated largely in the realm of already established legal precedent in the United States towards immigration.

On June 16, 2015, President Trump announced his first run for presidency, immediately taking a harsher stance towards immigration. During his campaign, President Trump proclaimed “if you don’t have a wall system, we’re not going to have a country,” running on a platform that invoked excessive fear among voters towards illegal immigrants and portraying the state of the southern border as out-of-control and in dire need of firmer control (“Separated: Children at the Border,” 2018, 28:53). Once elected in 2016, the Trump administration continued to push this hard line, with Immigration and Customs Enforcement (ICE) agents rounding up 40,000 immigrants across the United States. The administration also broadened criteria for deportation and threatened federal funding cuts for sanctuary cities within the U.S. if they did not adopt a harder approach against immigrants. While President Trump originally claimed that he would keep families together while strictly defending the border from criminals, that quickly changed following the inauguration. Soon after, President Trump began to float the idea of implementing an initiative to separate children from their accompanying adults if they entered the country illegally, presenting it as a way to curb families from illegally immigrating to the United States. While the administration at first attempted to backtrack on their stance, by the fall of 2017 they quietly started a pilot program in which hundreds of children were taken from their parents at the border. A House Judiciary Committee investigation later found that during the pilot program, the administration realized that they were unable to keep track of family members in a way that would ensure eventual reunification (*Judiciary Committee*, 2020). Knowing this, the administration publicly announced the policy nationwide the following spring by

Attorney General Jeff Sessions, who claimed “the government had to separate children while their parents were prosecuted for illegal entry” (“Separated: Children at the Border,” 2018, 34:54). The Trump administration stated that they had to enact a family separation policy because, following the *Flores* decision under President Obama, children could no longer be held in adult detention facilities for over twenty days. Rather than releasing families pending court decisions, as the Obama administration did, the Trump administration chose to separate children from their families, placing them in the care of the Office of Refugee Resettlement (ORR).

After much public outrage, President Trump issued Executive Order 13841 in June 2018, with the goal of ending future family separations. It did not do anything to address families who had already been separated, however an A.C.L.U lawsuit, *Ms. L., et al. v. ICE, et al.*, in California resulted in a federal judge ordering the reunification of all separated children within a month (2018). Despite this, the House Judiciary Committee investigation found that hundreds of children were still awaiting reunification more than a year after the family separation policy had ended (*Judiciary Committee*, 2020). The hardline policies followed by the Trump administration resulted in the traumatic and senseless separation of families, leaving permanent psychological impacts on children even after reunification.

The immigration policies under both the Obama and Trump administrations failed to consider the factors that might drive a family to come to the United States in the hope of receiving asylum, regardless of what they might face after entering the country. Among unaccompanied minors entering the U.S., the primary motivation is to “escape dangerous situations with gangs and personal threats to themselves and family members” (García & Sanchez, 2021, 202). While crossing through Central America,

these children faced violence, sexual assault, and other hazardous conditions. Despite knowing these factors, and knowing that upon entering the U.S. they may be immediately returned back to their country of origin, these children chose to risk the journey in the hopes of a better life for themselves. These factors also drove families to seek asylum, in the hopes of ensuring safety for their families in the United States. While these immigration policies were in effect for all seeking permanent status in the United States, the “concept of ‘illegal immigrant’ is inextricably tied to the image of ‘Latino’...decreasing the degree to which immigration is viewed in a positive manner,” which has influenced the perception of immigration, both legal and illegal, in American politics and in the minds of Americans (McClain & Johnson Carew, 2017, 224). By emphasizing Latino immigration, both administrations have contributed to the negative perception of Latinos in the U.S. as criminals or illegal immigrants, regardless of their true standing in the United States.

In conclusion, the policies of the Obama and Trump administrations contributed to preventing immigrants from accessing legal resources, separating families against legal rulings, and in many cases failing to reunify families after they were ordered to do so. These actions, along with the characterization of Latinos as illegal immigrants, have contributed to an anti-immigration fervor in the United States, which has persisted into the second Trump administration as deportations of legal and illegal immigrants continues to rise throughout the country.

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